JOINT USE AGREEMENT

This is a Joint Use Agreement (the "Agreement"), dated as of February 6, 2000, between the Meadow Pointe II Community Development District, a special purpose unit of local government (the "Second District") and the Meadow Pointe III Community Development District, a special purpose unit of local government (the "Third District").

Background and Purpose

The lands within the Second District and the Third District (collectively, the "Districts") are part of an overall master planned community known as Meadow Pointe. The Second District owns and maintains certain internal roadways which serve the entire community. Likewise, the Third District will be constructing and thereafter maintaining certain internal roadways which will also serve the entire community. As provided below, the purpose of this Agreement is to formally memorialize the right of residents of both Districts to use the internal roadways owned and maintained by the Second District and the Third District.

Operative Provisions

1. Recitals. The foregoing statement of background and purpose is hereby adopted as part of this Agreement for all purposes.

2. Joint Use. Residents of the Second District may use and enjoy the roadways in the Third District on an equal basis with residents of the Third District. Residents of the Third District may likewise use and enjoy the roadways in the Second District on an equal basis with residents of the Second District.

Term = 2020
Feb. 6

3. Maintenance of Roadways. The Second District and the Third District agree that they shall maintain the roadways they own in an acceptable condition consistent with the quality of the entire Meadow Pointe community, subject, however, to ordinary wear and tear.

4. Apportionment of Expenses. Expenses for the operation and maintenance of roadways in the Second District shall be paid from the O&M budget of the Second District. Expenses for the operation and maintenance of roadways in the Third District shall be paid from the O&M budget of the Third District.

5. Term. This Agreement shall be for a primary term of 20 years from the effective date hereof. At the end of such primary term, this Agreement shall be automatically extended for successive renewal terms of five years unless either the Second District or the Third District elects to terminate this Agreement, in which case the party electing to terminate this Agreement shall so notify the other party in writing before the end of the primary term or applicable renewal term as the case may be.

IN WITNESS WHEREOF, the Second District and the Third District have executed this Agreement as of the date first set forth above.

MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT

By: _____
Donald A. Buck, Chairman
Board of Supervisors

Attest:

Secretary

MEADOW POINTE III COMMUNITY DEVELOPMENT DISTRICT

By: _____
Donald A. Buck, Chairman
Board of Supervisors

Attest:

Secretary

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3/6/2000 = 20yrs w/ 5 yr renewals thereafter